



CHAPTER xlvii.

An Act to empower the mayor aldermen and burgesses of the borough of Sunderland to reconstruct the Wearmouth Bridge and for other purposes. A.D. 1915.

[2nd July 1915.]

WHEREAS the Wearmouth Bridge in the borough of Sunderland is vested in the mayor aldermen and burgesses of the borough of Sunderland (in this Act called "the Corporation") and it is expedient to empower the Corporation to reconstruct widen and improve the bridge and to divert and improve the tramway across the bridge and to confer upon them the powers contained in this Act:

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows:—

For and in connection with the construction of	£
the works authorised by this Act (other than	
the purchase of land) - - - - -	144,000

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the cost thereof should be spread over a term of years:

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the approval of the Local Government Board has been obtained:

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And whereas plans and sections showing the lines and levels of the works authorised by this Act and a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Durham and are in this Act respectively referred to as the deposited plans sections and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PRELIMINARY.

Short title.

1. This Act may be cited as the *Sunderland Corporation (Wearmouth Bridge) Act 1915*.

Incorporation of Acts.

2. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely):—

(1) The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845):

(2) Section 19 (Local authority may lease or take tolls) and Parts II. and III. of the Tramways Act 1870:

Provided that the said section 19 shall be read and have effect as if the words “but nothing in this Act contained shall authorise any local authority to place or run carriages upon such tramway and to demand and take tolls and charges in respect of the use of such carriages” were omitted from that section:

Provided also that the provisions of section 7 of the Telegraph Act 1878 shall apply (instead of the provisions of section 30 of the Tramways Act 1870) to any alteration of or interference with any telegraphic line belonging to or used by the Postmaster-General:

(3) The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation

of lands near the railway during the construction thereof and in such provisions for the purposes of this Act "the railway" means the reconstruction widening and improvement of the Wearmouth Bridge authorised by this Act. A.D. 1915.

3.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction. Interpretation.

(2) In this Act unless the subject or context otherwise requires—

"The Corporation" means the mayor aldermen and burgesses of the borough of Sunderland;

"The borough" means the borough of Sunderland;

"The district fund" and "the general district rate" mean respectively the district fund and the general district rate of the borough;

"The bridge" means the Wearmouth Bridge;

"The tribunal" means the jury arbitrators umpire or other authority to whom any question of disputed purchase money or compensation under this Act is referred;

"Statutory borrowing power" means any power whether or not coupled with a duty of borrowing or continuing on loan or reborrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any provisional order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

"Telegraphic line" has the same meaning as in the Telegraph Act 1878;

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“The Act of 1899” means the Sunderland Corporation Act 1899; and

“The Act of 1907” means the Sunderland Corporation Act 1907.

LANDS.

Power to
acquire
lands.

4.—(1) Subject to the provisions and for the purposes of this Act the Corporation may enter on take and use all or any of the lands delineated on the deposited plans and described in the deposited book of reference.

(2) Provided that notwithstanding the acquisition by the Corporation of the occupation road numbered 19 on the deposited plans they shall during the construction and after the completion of Work No. 1 authorised by this Act provide reasonable access from North Quay to any lands situate on the westerly side of the bridge the occupiers of which are now entitled to use the said occupation road.

Any difference arising between the Corporation and such occupiers or any of them shall be determined by an arbitrator to be appointed failing agreement by the Board of Trade on the application of either party.

Period for
compulsory
purchase of
lands.

5. The powers of the Corporation for the compulsory purchase of lands under this Act shall cease after the expiration of three years from the passing of this Act.

Correction of
errors in
plans and
book of
reference.

6. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the borough for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of Durham and a duplicate thereof shall also be deposited with the town clerk and such certificate and duplicate respectively shall be kept by such clerk of the peace and town clerk respectively with the other documents to which the same

relate and thereupon the deposited plans or book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Corporation to take the lands and execute the works in accordance with such certificate. A.D. 1915.

7.—(1) Whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Corporation of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Corporation and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

Acquisition
of parts only
of certain
premises.

(a) The owner of and persons interested in any of the properties whereof the whole or part is described in the Schedule to this Act and whereof a portion only is required for the purposes of the Corporation or each or any of them are hereinafter in this section included in the term "the owner" and the said properties are hereinafter referred to as "the scheduled properties":

(b) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Corporation that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Corporation such portion only without the Corporation being obliged or compellable to purchase the whole the Corporation paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:

(c) If within such twenty-one days the owner shall by notice in writing to the Corporation allege that such portion cannot be so severed the tribunal shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled properties specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other

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portion less than the whole (but not exceeding the portion over which the Corporation have compulsory powers of purchase) can be so severed:

- (d) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Corporation the portion which the tribunal shall have determined to be so severable without the Corporation being obliged or compellable to purchase the whole the Corporation paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal:
- (e) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner:
- (f) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Corporation may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice:
- (g) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Corporation in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses

reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit. A.D. 1915.

(2) The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 (Parties not to be required to sell part of a house &c.) of the Lands Clauses Consolidation Act 1845.

(3) The provisions of this section shall be stated in or endorsed upon every notice given thereunder to sell and convey any premises.

8. In determining any question of disputed purchase money or compensation payable in respect of lands taken in pursuance of this Act the tribunal shall not award any sum of money for or in respect of any improvement alteration or building made or erected or for or in respect of any interest in the land created after the twentieth day of November nineteen hundred and fourteen if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made erected or created with a view to obtaining or increasing compensation under this Act. Provisions as to new buildings and interests.

9.—(1) The tribunal to whom any question of disputed purchase money or compensation under this Act is referred shall if so required by the Corporation award and declare whether a statement in writing of the amount of compensation claimed has been delivered to the Corporation by the claimant giving sufficient particulars and in sufficient time to enable the Corporation to make a proper offer and if the tribunal shall be of opinion that no such statement giving sufficient particulars and in sufficient time shall have been delivered and that the Corporation had been prejudiced thereby the tribunal shall have power to decide whether the claimant's costs or any part thereof shall be borne by the claimant. Costs of arbitration &c. in certain cases.

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(2) Provided that it shall be lawful for any judge of the High Court to permit any claimant after seven days' notice to the Corporation to amend the statement in writing of the claim delivered by him to the Corporation in case of discovery of any error or mistake therein or for any other reasonable cause such error mistake or cause to be established to the satisfaction of the judge after hearing the Corporation if they object to the amendment and such amendment shall be subject to such terms enabling the Corporation to investigate the amended claim and to make an offer de novo and as to postponing the hearing of the claim and as to costs of the inquiry and otherwise as to such judge may seem just and proper under all the circumstances of the case.

(3) Provided also that this section shall be applicable only in cases where the notice to treat under the Lands Clauses Consolidation Act 1845 either contained or was endorsed with a notice to the effect of this section.

Purchase of
additional
lands by
agreement.

10. The Corporation in addition to any other lands acquired by them in pursuance of this Act may by agreement purchase take on lease acquire and hold further lands for the purposes of this Act but the quantity of lands held by the Corporation in pursuance of this section shall not at any time exceed five acres Provided that the Corporation shall not create or permit the creation or continuance of any nuisance on any such lands.

Persons
under dis-
ability may
grant ease-
ments &c.

11. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Retention
sale and dis-
posal of
lands.

12. Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Corporation may retain hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such

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terms and conditions as they may think fit and either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act or any other local Act of the Corporation and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interests therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

13.—(1) So long as any lands remain to be acquired by the Corporation under the authority of this Act they may so far as they consider necessary apply any capital moneys received by them on the re-sale or exchange of or by leasing any lands acquired under the authority of this Act in the purchase of lands so remaining to be acquired but as to capital moneys so received and not so applied the Corporation shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment provided by this Act except to such extent and upon such terms as may be approved by the Local Government Board:

Application
of capital
moneys on
disposal of
lands.

Provided that—

(a) The amount to be applied in the purchase of lands under this section shall not exceed the amount for the time being unexhausted of the borrowing powers conferred by this Act for the purpose of such purchase:

(b) The borrowing powers conferred by this Act for the purpose of such purchase shall be reduced to the extent of the amount applied in the purchase of lands under the provisions of this section.

(2) Any capital moneys received by the Corporation under the last preceding section on the re-sale or exchange of or by leasing any lands acquired under any local Act other than this Act shall be applied in manner provided by section 90 (Payment of sale money rents &c. to loans fund) of the borough of Sunderland Act 1885.

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WORKS.

Power to
construct
works.

14. Subject to the provisions of this Act the Corporation may make and maintain in the lines and according to the levels shown on the deposited plans and sections the works hereinafter described together with all necessary or proper works and conveniences connected therewith or incident or ancillary thereto.

The works hereinbefore referred to and authorised by this Act will be situate in the borough and are—

Work No. 1 A reconstruction widening and improvement of the bridge together with a widening and improvement of the approaches thereto commencing at the junction of Bridge Street with Bridge Crescent and terminating at the junction of North Bridge Street with Bonner's Field :

Work No. 2 A diversion of the tramway crossing the bridge commencing at the junction of Bridge Street with Bridge Crescent and terminating at the junction of North Bridge Street with Bonner's Field.

Limits of
deviation.

15.—(1) In constructing the works authorised by this Act the Corporation may deviate from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and they may deviate vertically from the levels of the said works as shown on the deposited sections to any extent not exceeding five feet upwards and to any extent downwards.

(2) Provided that no deviation either lateral or vertical below high-water mark shall be made without the consent in writing of the Board of Trade and that no deviation shall reduce the headway of the bridge as shown on the deposited sections.

Subsidiary
works.

16.—(1) Subject to the provisions of this Act and within the limits of deviation shown on the deposited plans the Corporation may in connection with the works authorised by this Act and for the purposes thereof make junctions and communications with any existing streets which may be intersected or interfered with by or be contiguous to such works and may make diversions widenings or alterations of the lines or levels of any existing streets for the purpose of connecting the same with such works

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or of crossing under or over the same or otherwise and may alter divert or stop up all or any part of any drain sewer channel or gas or water main or pipe wire or apparatus within the said limits the Corporation providing a proper substitute before interrupting the flow of sewage in any drain or sewer or of any gas or water in any main or pipe or of electricity or telephonic communication in any wire or apparatus and making compensation for any damage done by them in the execution of the powers of this section.

(2) Provided that nothing in this Act shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 to 1909 to which the provisions of section 15 of the Act of 1882 apply except in accordance with and subject to the provisions of that section.

(3) Provided also that the Corporation shall not alter divert or otherwise interfere with any pipe wire or apparatus of the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

17. Within the limits of deviation shown on the deposited plans the Corporation may raise sink or otherwise alter the position of any of the steps areas cellars windows and pipes or spouts belonging to any house or building and also the drains and the pipes or wires which for the purpose of conveying gas water or electricity to any house or other place shall be laid and may remove all other obstructions so that the same be done with as little delay and inconvenience to the inhabitants as the circumstances of the case will admit and the provisions of section 308 (Compensation in case of damage by local authority) of the Public Health Act 1875 shall apply as if the acts done under the authority of this section were done in exercise of the powers of that Act.

Power to
alter steps
areas pipes
&c.

18.—(1) The Corporation may stop up the portions of the roads footways and steps shown on the deposited plans as intended to be closed and thereupon all public rights of way thereover shall be extinguished.

Stopping up
of roads and
footpaths.

(2) Provided that if the Corporation shall stop up the steps numbered 13 on the deposited plans they shall before such stopping up provide in lieu thereof equally convenient steps or

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Temporary
stoppage of
streets.

19.—(1) The Corporation during the execution and for the purposes of any works authorised by this Act may break up and also temporarily stop up divert and interfere with any street and may for any reasonable time prevent all persons other than those bonâ fide going to or returning from any house in the street from passing along and using the same.

(2) The Corporation shall provide reasonable access for foot passengers bonâ fide going to or returning from any such house.

(3) The Corporation shall at all times during the execution of any such works maintain a reasonably sufficient access both for vehicular and pedestrian traffic to the North Eastern Railway Company's stations within the borough.

Agreements
with River
Wear Com-
missioners.

20. The Corporation and the River Wear Commissioners may enter into and carry into effect agreements in relation to the mode in which the works authorised by this Act shall be executed and the said commissioners may apply their funds to the purposes of any such agreements.

Accommo-
dation for
telegraphic
lines.

21.—(1) The Corporation shall in executing the works authorised by this Act provide such reasonable accommodation under the footway on the east side of the bridge as shall be sufficient for twelve cast-iron pipes (to contain telegraphic lines) each with an internal diameter not exceeding three and a quarter inches.

The accommodation shall be provided and constructed in accordance with plans sections and particulars to be previously submitted to and reasonably approved by the Postmaster-General. Provided that if within one month of the receipt of the said plans sections and particulars the Postmaster-General shall not have intimated to the Corporation his disapproval thereof or made any requirement with respect thereto he shall be deemed to have approved the same.

(2) Nothing in this Act contained shall affect the rights and powers of the Postmaster-General under the Telegraph Acts 1863 to 1913.

For protec-
tion of Sun-
derland and

22. For the protection of the Sunderland and South Shields Water Company (in this section called "the water company")

the following provisions shall unless otherwise agreed between the Corporation and the water company have effect (that is to say) :—

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South
Shields
Water Com-
pany.

(1) In this section the expression “apparatus” means the mains pipes apparatus and works of the water company :

(2) In the construction of the works authorised by this Act the Corporation shall provide accommodation for apparatus on one side or both sides of the bridge and on or under the approaches thereto or in such other convenient position on the bridge as may be agreed between the Corporation and the water company and shall before interfering with any existing apparatus provide substituted apparatus to the reasonable satisfaction of the engineer to the water company comprising two mains each of twelve inches internal diameter with the necessary valves and expansion pipes :

All expenses incurred in providing such accommodation as aforesaid and in altering diverting or stopping up any apparatus and in providing other apparatus in substitution therefor between the points marked “B” and “B” on the deposited plans shall be paid by the Corporation :

(3) Notwithstanding anything contained in any Act to the contrary the water company shall not break up or interfere with any roadway or footway on the bridge or lay down or place any apparatus therein except in accordance with this section :

(4) Before commencing any work authorised by this Act whereby the apparatus of the water company may be disconnected or otherwise interfered with the Corporation shall at least fourteen days before the commencement of any such work deliver to the water company plans and sections and a description of the work so proposed to be executed describing the proposed method of executing the same :

If such work will interfere with or endanger any of the apparatus or impede the supply of water by means thereof the water company may give notice

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Corporation or their assigns at any point or place where any apparatus may be situate and to do all such works in and upon such lands and premises as may be necessary for repairing maintaining removing replacing or extending any such apparatus as aforesaid :

- (8) If any difference shall arise between the Corporation and the water company or their respective engineers concerning any plans sections or descriptions to be delivered to the water company under this section or the works to be carried out in pursuance thereof or any money to be paid or in respect to any other matter arising under this Act the matter in difference shall unless otherwise agreed be referred to and settled by an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers :

In settling any question under this section the arbitrator shall have regard to any duties or obligations which the water company may be under in respect of the apparatus and may if he thinks fit require the Corporation to execute any temporary or other works so as to avoid interference with any purpose for which the apparatus or other work is used so far as may be possible :

- (9) The Corporation and the water company may enter into and carry into effect agreements varying the provisions of this section in relation to the mode or terms on which any apparatus shall be laid down or placed on the bridge :
- (10) Subject to the provisions of this Act the provisions of section 39 (Existing pipes over Wearmouth Bridge may be maintained but no additional pipes to be laid without consent) of the Wearmouth Bridge Act 1857 shall apply to the bridge as reconstructed under this Act.

For protection of Sunderland Gas Company.

23. For the protection of the Sunderland Gas Company (in this section called "the gas company") the following provisions shall unless otherwise agreed between the Corporation and the gas company have effect (that is to say):—

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(1) In this section the expression "apparatus" means the mains pipes apparatus and works of the gas company :

(2) In the construction of the works authorised by this Act the Corporation shall—

(a) Provide accommodation on one side or both sides of the bridge and on or under the approaches thereto or in such other convenient position on the bridge as may be agreed between the Corporation and the gas company for the substituted apparatus mentioned in this subsection and for an additional steel main of eight inches internal diameter for conveying compressed gas ;

(b) Provide (before interfering with any existing apparatus) substituted apparatus to the reasonable satisfaction of the engineer to the gas company comprising two mains each of eighteen inches internal diameter with the necessary valves and expansion pipes :

All expenses incurred in providing such accommodation and in laying down the said mains of eighteen inches diameter and in altering diverting or stopping up any apparatus between the points marked "B" and "B" on the deposited plans shall be paid by the Corporation but all expenses incurred in the provision of mains valves and pipes under this subsection and in laying down the additional steel main for compressed gas and the apparatus in connection therewith shall be paid by the gas company :

The gas company shall also pay to the Corporation the sum of twenty-five pounds per annum the first payment to be made as soon as the substituted apparatus shall have been provided in accordance with this subsection :

(3) The additional steel main for compressed gas referred to in subsection (2) of this section shall only be laid down by the gas company under the superintendence (if the same be given) and to the reasonable satisfaction of the engineer of the Corporation and in accordance with plans sections and a description

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previously submitted to and reasonably approved by the Corporation or as in case of difference or of the Corporation failing or neglecting to approve or disapprove the same or to state their requirements in relation thereto within fourteen days of their submission to the Corporation may be settled or approved by an arbitrator as in this section provided:

- (4) The provisions of subsections (3) to (10) (both inclusive) of the section of this Act of which the marginal note is "For protection of Sunderland and South Shields Water Company" shall mutatis mutandis extend and apply to and for the protection of the gas company and the apparatus as fully and effectually in all respects as if the said provisions were in terms re-enacted in this section and the gas company were therein referred to in lieu of the water company and the word "gas" in lieu of the word "water."

For protec-
tion of
River Wear
Commis-
sioners.

24. The following provisions for the protection and benefit of the River Wear Commissioners (in this section called "the commissioners") shall except so far as may be otherwise agreed between the commissioners and the Corporation apply and have effect (that is to say):—

- (1) The bridge shall be constructed with a span of not less than two hundred and ninety-six feet:
- (2) Before commencing the construction of the bridge the Corporation shall furnish the commissioners with plans and sections showing the depth to which the abutments thereof are proposed to be carried and if within one month after such plans and sections have been furnished the commissioners shall give notice to the Corporation requiring them to construct the bridge with foundations sufficient to allow the river to be dredged to a depth of thirty feet below low-water mark of ordinary spring tides the Corporation shall comply with such requirements and one half of any additional expense incurred by the Corporation in complying with such requirements shall be repaid to them by the commissioners but the sum to be so repaid shall not exceed ten thousand pounds:
- (3) The commissioners may apply their funds for the purposes of this section:

(4) If any difference shall arise between the Corporation and the commissioners under this section the matter in difference shall unless otherwise agreed be referred to an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers and the provisions of the Arbitration Act 1889 shall apply to any such arbitration. A.D. 1915.

25. The following provision for the protection and benefit of Samuel Wilson Tom Cooper Wilson Hugh Wilson Oswald Wilson and Sam Wilson carrying on business under the name of J. & W. Wilson and Sons their heirs executors administrators or assigns (in this section called "the owners") shall except so far as may be otherwise agreed between the Corporation and the owners apply and have effect (that is to say):—

For protection of J. & W. Wilson and Sons.

The premises belonging to the owners at the time of the passing of this Act and situate at Newcastle Road in the borough shall for the purposes of the section of this Act whereof the marginal note is "Acquisition of parts only of certain premises" be deemed to form part of the premises of the owners which are situate at the North Quay.

26.—(1) Subject to the provisions of this Act any of the works authorised by this Act to be constructed on over or under tidal lands below high-water mark of ordinary spring tides shall be constructed only in accordance with such plans and sections and subject to such restrictions and regulations as previous to such works being commenced have been approved by the Board of Trade in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade.

Works below high-water mark to be subject to approval of Board of Trade.

(2) Any alteration or extension of any such works shall be subject to the like approval.

(3) If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost of the Corporation and the amount of such cost shall be a debt due from the Corporation to the Crown and shall be recoverable as a Crown debt or summarily.

27.—(1) The Corporation shall at or near the works below high-water mark hereby authorised during the whole time of the constructing altering or extending the same exhibit and

Lights on works during construction.

A.D. 1915. keep burning at their own expense every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Board of Trade from time to time require or approve.

(2) If the Corporation fail to comply in any respect with the provisions of this section they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

Survey of
works by
Board of
Trade.

28. If at any time the Board of Trade deem it expedient for the purposes of this Act to order a survey and examination of a work constructed by the Corporation on in over through or across tidal lands or tidal water or of the intended site of any such work the Corporation shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Corporation to the Crown and be recoverable as a Crown debt or summarily.

Abatement
of work .
abandoned
or decayed.

29. If a work constructed by the Corporation on in over through or across tidal lands or tidal water is abandoned or suffered to fall into decay the Board of Trade may abate and remove the work or any part of it and restore the site thereof to its former condition at the expense of the Corporation and the amount of such expense shall be a debt due from the Corporation to the Crown and be recoverable as a Crown debt or summarily.

Application
of existing
Acts.

30. Subject to the provisions of this Act the provisions contained in the Acts relating to the bridge in force immediately before the passing of this Act shall with any necessary modifications extend and apply to the bridge as reconstructed widened and improved under this Act.

FINANCE.

Power to
borrow.

31.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall pay off all moneys so borrowed within the respective periods (each of which is in this Act referred to as "the prescribed period") mentioned in the third column thereof (namely):—

1	2	3	A.D. 1915.
Purpose.	Amount.	Period.	
(a) For and in connection with the purchase of land for the purposes of this Act.	The sum requisite. £	Sixty years from the date or dates of borrowing.	
(b) For and in connection with the construction of the works authorised by this Act.	144,000	Sixty years from the date or dates of borrowing.	
(c) For paying the costs charges and expenses of this Act as hereinafter defined.	The sum requisite.	Five years from the passing of this Act.	

(2) The Corporation may also with the consent of the Local Government Board borrow such further money as may be necessary for any of the purposes of this Act and any money borrowed under this subsection shall be repaid within such period as may be prescribed by that Board.

(3) In order to secure the repayment of any money borrowed under this section and the payment of interest thereon the Corporation may mortgage or charge the district fund and the general district rate.

(4) The provisions of this section shall not limit the powers conferred upon the Corporation by section 55 (Power to use one form of mortgage for all purposes) of the Act of 1907.

(5) The Corporation may appropriate and use for and in connection with the construction of the works authorised by this Act any sum which has been or shall be paid to them in respect of damage or injury done to the existing bridge.

32. Notwithstanding anything in this Act the Corporation shall not under the powers of this Act borrow any money (other than money required to pay the costs charges and expenses of this Act as hereinafter defined) during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained.

Restriction
on borrowing
money.

33. The following provisions of the Act of 1899 and of the Act of 1907 shall subject as regards mortgages granted under section 55 (Power to use one form of mortgage for all purposes) of the Act of 1907 to the provisions of that section extend and apply to and for the purposes of this Act as if those

Application
of provisions
of Acts of
1899 and
1907.

[Ch. xlvii.] *Sunderland Corporation* [5 & 6 GEO. 5.]
(*Wearmouth Bridge*) Act, 1915.

A.D. 1915. provisions were with all necessary modifications re-enacted in this Act (namely) :—

The Act of 1899—

- Section 59 (Provision as to mortgages);
- Section 68 (Protection of lenders from inquiry);
- Section 69 (Annual return to Local Government Board with respect to sinking fund);
- Section 70 (Audit of accounts) :

The Act of 1907—

- Section 48 (Certain regulations of Public Health Act 1875 as to borrowing not to apply);
- Section 49 (Mode of raising money);
- Section 51 (Mode of payment off of money borrowed);
- Section 52 (Sinking fund);
- Section 59 (Expenses of execution of Act);
- Section 66 (Inquiries by Local Government Board);
- Section 72 (Recovery of demands);
- Section 74 (Application of section 265 of Public Health Act 1875).

Power to
re-borrow.

34.—(1) The Corporation shall have power—

- (a) to borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be forthwith repaid; or
- (b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys. A.D. 1915.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

- (a) by instalments or annual payments; or
- (b) by means of a sinking fund; or
- (c) out of moneys derived from the sale of land; or
- (d) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

(5) Section 53 (Power to re-borrow) of the Act of 1907 is hereby repealed but without prejudice to anything done or suffered to be done thereunder.

35. If any money is payable to a mortgagee or stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Corporation. Receipt in case of persons not sui juris.

36. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Corporation to take use or in any manner interfere with any land or hereditaments or any rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods without the consent in writing of the Commissioners of Woods on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners are hereby authorised to give). Crown rights.

37. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed and ascertained by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the district fund or out of money to be borrowed under this Act for that purpose. Costs of Act.

A.D. 1915.

The SCHEDULE referred to in the foregoing Act.

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